

§ 325.3. The probable-cause hearing; determination. 1. At the conclusion of a probable-cause hearing held pursuant to section 325.1 the court shall determine in accordance with the evidentiary standards applicable to a hearing on a felony complaint in a criminal court:

(a) whether it is reasonable to believe that a crime was committed; and

(b) whether it is reasonable to believe that the respondent committed such crime.

2. The court shall state on the record the section or sections of the penal law or other law which it is reasonable to believe the respondent violated.

3. If the court finds that there is reasonable cause pursuant to subdivision one, it shall further determine whether continued detention is necessary pursuant to section 320.5.

4. If the court does not find that there is reasonable cause to believe that a crime was committed and that the respondent committed it, the case shall be adjourned and the respondent released from detention. If the court or the presentment agency cannot hold a probable cause hearing within the limits of subdivision two of section 325.1, the court may dismiss the petition without prejudice or for good cause shown adjourn the hearing and release the respondent pursuant to section 320.5.